

25STCV18918 25STCV18918

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Division: Civil Law and Motion
Department: 506
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Case Number: 25STCV18918 Hearing Date: July 16, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR
THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

BENJAMIN GUTKMECHT,

Plaintiff,

vs.

FCA US, LLC, et al.,

Defendants.

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CASE NO.: 25STCV18918

[TENTATIVE] ORDER SUSTAINING DEFENDANT'S
DEMURRER AND GRANTING DEFENDANT'S MOTION TO STRIKE

Dept. 506

8:30 a.m.

July 16, 2026

On

June 30, 2025, Plaintiff Benjamin Gutkmecht filed this action against Defendant
FCA US, LLC arising from Plaintiff's purchase of an allegedly defective
vehicle.

On

October 13, 2025, Defendant filed a demurrer to the sixth causes of action, and
a motion to strike punitive damages.

DISCUSSION

A

demurrer for sufficiency tests whether the complaint states a cause of
action. (Hahn v. Mirda (2007) 147
Cal.App.4th 740, 747.) When considering
demurrers, courts read the allegations liberally and in context, accepting the
alleged facts as true. (Nolte v.
Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

A. Plaintiff's Sixth Cause of Action

Fails to Plead a Duty to Disclose

Defendant

argues that the sixth cause of action for Fraudulent Inducement – Concealment does not allege a direct transactional relationship giving rise to a duty to disclose.

Fraud

based on concealment requires that “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler).) “Even under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party.” (Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1256, 1384.)

An

essential element of intentional concealment includes the duty to disclose, which must be based upon a transaction, or a special relationship, between plaintiff and defendant. (Id. at p. 314.) “There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.’” (Id. at p. 311.) “[O]ther than the first instance, in which there must be a fiduciary relationship between the parties, ‘the other three circumstances in which nondisclosure may be actionable presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. . . . “[W]here material facts are known to one party and not to the other, failure to disclose them is not actionable fraud unless there is some relationship between the parties which gives rise to

a duty to disclose such known facts.”

[Citation.]’ [Citation.]” (Hoffman v. 162 North Wolfe LLC (2014)

228 Cal.App.4th 1178, 1187 (Hoffman).)

“Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, 7 Cal.App.5th at p. 312.)

Plaintiff

does not allege facts showing the existence of a relationship between the parties that gives rise to a duty to disclose facts. (See Hoffman, supra, 228 Cal.App.4th at p. 1187.) Plaintiff alleges that

Defendant had superior and exclusive knowledge of the engine defect and the defect was not known to or reasonably discoverable by Plaintiff. (Complaint

¶ 22.) There are no facts showing that

Defendant’s knowledge was exclusive.

Indeed, Plaintiff alleges that there were prior customer complaints, suggesting that the knowledge was in fact public. (Complaint ¶ 67.)

The

demurrer is sustained on this ground.

MOTION TO STRIKE

The

court may, upon a motion or at any time in its discretion: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).)

Defendant moves to strike Plaintiff’s prayer for

punitive damages. A plaintiff can

recover punitive damages in tort cases where “the defendant has been guilty of oppression, fraud, or malice.” (Civ.

Code, § 3294, subd. (a).) “The mere

allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages.

[Citation.] Not only must there

be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.

[Citation.]” (Grieves v.

Superior Court (1984) 157 Cal.App.3d 159, 166, fn. omitted.) Additionally, a plaintiff is not entitled to recover both punitive damages and civil penalties under Song-Beverly. (Troensegaard v. Silvercrest Industries, Inc. (1985) 175 Cal.App.3d 218, 228.)

The Court concurrently sustains the demurrer to the fraud cause of action, and there are no other specific facts showing oppression or malice.

The motion to strike is granted.

CONCLUSION

The demurrer is SUSTAINED.

The motion to strike is GRANTED.

At

the hearing, Plaintiff should be prepared to explain what additional facts will be pleaded and exactly how any amendments can remedy the deficiencies of the Complaint without making it a sham pleading.

The Court will decide at the hearing whether to grant leave to file a First Amended Complaint.

Moving party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 16th day of July 2026

Hon. Thomas D.

Long

Judge of the
Superior Court